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PETROLEUM INDUSTRY ACT, No. 6, 2021
NIGERIAN UPSTREAM PETROLEUM ADVANCE CARGO
DECLARATION REGULATIONS, 2024



ARRANGEMENT OF REGULATIONS

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PETROLEUM INDUSTRY ACT, No. 6, 2021
NIGERIAN UPSTREAM PETROLEUM ADVANCE CARGO
DECLARATION REGULATIONS, 2024

Commence-
ment

[13th Day of March, 2024]

In exercise of the powers conferred on it by sections 7(1) and 7(e) of the Petroleum Industry Act, No. 6, 2021 and of all other powers enabling it in that behalf, the Nigerian Upstream Petroleum Regulatory Commission (“the Commission”) makes the following Regulations —

PART I — OBJECTIVE AND APPLICATION

Objective

1.—(1) The objectives of these Regulations are to —
(a) establish a regime for declaration of petroleum exports from Nigeria ;
(b) identify and establish a data base of petroleum exports from Nigeria ;
(c) ensure that only certified production that relates to upstream petroleum operations is exported from Nigeria ; and
(d) prevent crude oil theft, illegal topping at crude oil export terminals and under-declaration of petroleum exported from Nigeria.

Application

2.—(1) These Regulations shall apply to —
(a) export of petroleum from Nigeria through onshore or offshore terminals ; and
(b) any terminal operator or third party who is engaged or involved in the export of petroleum from Nigeria.
(2) These Regulations shall apply in addition to extant regulations and procedures applicable to the export of petroleum in Nigeria, provided that where the provision of other Regulations conflict with these Regulations or procedures, the provisions of these Regulations shall prevail.

PART II — SUBMISSION OF ADVANCE CARGO DECLARATION FORM AND
ISSUANCE OF UNIQUE IDENTIFICATION NUMBER

Advance
Cargo
Declaration
Form

3.—(1) Every export of petroleum shall be preceded by an advance cargo declaration form submitted to the Commission.
(2) The form referred to in subregulation (1) of this regulation shall contain —
(a) terminal for the export of the petroleum ;
(c) name or details of the consignee ;
(b) details of the exporter of the petroleum, where the exporter is not the producer of the petroleum ;
(a) identity of the producer of the petroleum ;

(e) flag, tonnage and International Maritime Organisation (IMO) Number of the vessel on which the petroleum is to be exported ;
 (f) expected time of arrival (ETA) of the vessel at the terminal ;
 (g) nominated quantity to be exported ;
 (h) destination of the petroleum ;
 (i) names of at least two officers of the company making the declaration, whose rank are not below the rank of a manager ; and
 (j) any other information as may be required by the Commission.

(3) The advance cargo declaration form shall be accompanied with a copy of the Export Permit to which the export relates.

Submission
of Advance
Cargo
Declaration
Form

4.—(1) The Commission shall appoint an expert as agent to establish and administer an online electronic portal on its behalf for the administration of the advance cargo declaration regime pursuant to these Regulations.

(2) An exporter of petroleum pursuant to these Regulations shall submit an advance cargo declaration form electronically through the advance cargo declaration portal established by the Commission in not less than five days before the ETA, provided that such exporter may review the advance cargo declaration form submitted.

(3) An exporter that submit advance cargo declaration in less than five days to the ETA is liable to an administrative charge of USD2,000 or the nearest equivalent payable to the Commission.

(4) For the purpose of these Regulations, a person is deemed to be an exporter of petroleum, where the person is —

- (a) a licensee or lessee who exports petroleum ; or
- (b) entitled or authorised by law to export petroleum from Nigeria and who exports petroleum.

Issuance of
Unique
Identification
Number

5.—(1) Petroleum shall not be exported from Nigeria without a unique identification number.

(2) The Commission shall, prior to issuing a unique identification number —

- (a) verify the information provided in the advance cargo declaration form ;
- (b) grant vessel clearance for the export to be conducted ; and
- (c) participate in the export process and compute the volume delivered to the vessel.

(3) The unique identification number shall be generated electronically by the Commission and imprinted on the following documents —

- (a) the Certificate of Quantity and Quality for the export ;

advance cargo declaration portal ;
and made available by the Commission to an exporter of petroleum on the
“Advance cargo declaration form”, means an electronic form designed
“Act”, means the Petroleum Industry Act No. 6, 2021 ;

9. In these Regulations — Interpretation

8. The Commission shall issue guidelines for the implementation and
administration of these Regulations. Issuance of
Guidelines

is liable to an administrative fine not exceeding USD1,000,000 or the Naira
equivalent.

(b) co-loads, makes, demands or receives additional cargo in
contravention of these Regulations, number ; or

(a) exports petroleum without obtaining the unique identification
number ; or

7.—(1) An exporter who provides false information in the advance
cargo declaration form shall be liable to an administrative fine not exceeding
USD20,000 or the Naira equivalent. Offences and
penalties

PART III — MISCELLANEOUS PROVISIONS

6. Where an exporter provides inaccurate or insufficient information in
the advance cargo declaration form, the Commission shall within two days of
receipt of the form, issue to the exporter, a notice specifying the inaccurate or
insufficient information and timeline for the exporter to rectify the defects.
Submission
of inaccurate
or
insufficient
information

regulation until all defects in the declaration are rectified.
any exporter who has not satisfied the provisions of subregulation (2) of this
(d) The Commission shall not issue a unique identification number to
any exporter who has not satisfied the provisions of subregulation (2) of this

accordance with these Regulations.
secure a new unique identification number for the additional petroleum in
the vessel bearing cargo for which a unique identification number has been
(2) Where an exporter of petroleum intends to export additional petroleum
advance cargo declaration portal.

a cargo declaration to which the unique identification number relates on the
which it relates and may be used to access relevant information connected to
(4) Each unique identification number shall be valid for the cargo to
advance cargo declaration portal.

(c) any other relevant document related to the exports.
(b) the Bill of Lading for the petroleum export ; and

Nigeria Upstream Petroleum Regulatory Commission
Commission Chief Executive
ENGR. GBENGA KOMOLAFE, FNSE

MADE at Abuja this 13th day of March, 2024.

Advance Cargo Declaration Regulations, 2024.

10. These Regulations may be cited as the Nigerian Upstream Petroleum
Advance Cargo Declaration Regulations, 2024.

Nigeria.
“Vessel” means any form of vessel employed to export cargo from
and
“Petroleum” shall have the same meaning as defined under the Act ;
“Licence” shall have the same meaning as defined under the Act ;
“Vessel” shall have the same meaning as defined under the Act ;
grease ;

gas, liquefied petroleum gas, condensates, refined products, lubricants and
Industries, Trade and Investment for the export of crude oil, liquefied natural
“Export Permit” means a permit issued by the Federal Ministry of
Commission ;
“Commission” means the Nigerian Upstream Petroleum Regulatory
Procedure Guides ;

the Commission for petroleum produced in accordance with relevant extant
“Certificate of Quantity and Quality” means a certificate issued by
Nigeria ;
“Cargo” means petroleum intended to be exported or shipped from
Regulations ;

created and maintained by the Commission for the purpose of these
“Advance cargo declaration portal” means an electronic database